

SUPREME COURT OF THE STATE OF NEW YORK
KINGS COUNTY

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RAUL CEDILLO,

Plaintiff,

-against-

THE CITY OF NEW YORK, NYPD OFFICER
JESSICA M. ROBERTS (Shield # 2624) and NYPD
OFFICERS JANE and JOHN DOE #'s 1-8 (Names and
Numbers are unknown at present) and other
Unidentified members of the New York City Police
Department,

Defendants.

SUMMONS

Basis of Venue:
Place of Incident

Plaintiff Designates
Kings County as
the place of trial

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To the above-named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
July 7, 2021

Respectfully submitted,

/s/ Sydney O'Hagan
Sydney O'Hagan, Esq.
40 Exchange Place
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New York, New York 10005
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TO: CITY OF NEW YORK: CORPORATION COUNSEL, 100 Church Street, New York, NY 10007
NYPD OFFICER JESSICA M. ROBERTS (SHIELD # 2624), 60th Precinct, Kings County, New York

SUPREME COURT OF THE STATE OF NEW YORK
KINGS COUNTY

-----X
RAUL CEDILLO,

Plaintiff,

-against-

**VERIFIED
COMPLAINT**

THE CITY OF NEW YORK, NYPD OFFICER
JESSICA M. ROBERTS (Shield # 2624) and NYPD
OFFICERS JANE and JOHN DOE #'s 1-8 (Names and
Numbers are unknown at present) and other
Unidentified members of the New York City Police
Department,

Defendants.

-----X
Plaintiff **Raul Cedillo**, by his attorney, SYDNEY O'HAGAN, ESQ., as and for the Complaint
herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Section 1983, the rights secured by the Fourth, Fifth and Fourteenth Amendments to the United States Constitution and the laws of the State of New York. Plaintiff was unlawfully arrested by the defendants. Plaintiff was deprived of his federal constitutional and state constitutional and common law rights when the individually named police officer defendant unlawfully confined plaintiff, caused the unjustifiable arrest of plaintiff. Plaintiff seeks compensatory and punitive damages, declaratory relief, an award of costs and attorney's fees and such other relief as the Court deems just and proper.

PARTIES

2. Raul Cedillo is a resident of Kings County in the State of New York.

3. Defendant City of New York is a municipal corporation organized under the laws of the State of New York, which violated plaintiff's rights as described therein.
4. NYPD OFFICER JESSICA M. ROBERTS assigned Shield # 2624 was and is at all times relevant herein an officer, employee, and agent of the New York City Police Department.
5. POLICE OFFICER JESSICA M. ROBERTS (Shield # 2624) is being sued in her individual capacity and official capacity.
6. Police Officer John Doe Number 1 is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
7. Police Officer John Doe #1 is being sued in his individual capacity and official capacity.
8. New York Police Officers John and Jane Doe #'s 2-8 are and were at all times relevant herein an officer, employee, and agent of the New York City Police Department.
9. Police Officers John and Jane Doe #2-8 are being sued in his/her individual capacity and official capacity.
10. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents, and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

11. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as agents in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.
12. Plaintiff in furtherance of his State causes of action filed a timely Notice of Claim upon the City of New York in compliance with Municipal Law Section 50.
13. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and the City of New York has failed to pay or adjust the claim.
14. The City of New York held a 50(h) hearing examination of the Plaintiff on June 16, 2020.

STATEMENT OF FACTS

15. On December 19, 2019, at approximately 4:00 p.m., in the vicinity of 2875 West 8th Street, Brooklyn, New York, several police officers from the 60th precinct, including upon information and belief, NYPD Officer Jessica M. Roberts (Shield # 2624), and NYPD Officers John and Jane Does #'s 1-8, and other as yet unknown police officers, at times acting in concert and at times acting independently, committed the following illegal acts against Plaintiff Raul Cedillo.
16. On that date and time, Plaintiff was at the New York State Department of Motor Vehicles ("NYDMV") applying for a New York State driver's license. Upon information and belief, Plaintiff Cedillo provided a copy of a genuine Maryland driver's license previously issued to him to the New York State DMV in support of his application for a New York State driver's license.

17. The copy of the Maryland's driver's license was not forged or fraudulent. Plaintiff Cedillo's picture was depicted on the license and it was issued to him from the Maryland DMV.
18. Upon information and belief, defendants ROBERTS and/or JANE or JOHN DOE #'s 1-8 presumed Plaintiff Cedillo was attempting to provide a fraudulent driver's license to the NYDMV because it was a photocopy of his license. In reality, Plaintiff believed the NYDMV license application required he provide any and all information of his prior driver's licenses. To that end, he transcribed the correct information from his Maryland driver's license to the NYDMV application. He never attempted or intended to provide false or fraudulent information to the NYDMV.
19. Upon information and belief, NYPD defendant officers never provided Plaintiff with an interpreter to question him regarding the validity of the Maryland driver's license or his reasons for providing the license information to NYDMV.
20. Without justification, defendant officer ROBERTS and/or JANE or JOHN DOE #'s 1-8 unlawfully arrested him and charged him with Falsifying Business Records and Attempted Falsification of Business records under New York Penal Law §§ 175.05(1) and 110/170.05(1). This charge requires a showing that a person falsified business records "*with intent to defraud, (1) makes or causes a false entry* in the business records of an enterprise. (emphasis added)
21. Plaintiff Cedillo never knowingly made a false entry into any business record. Upon information and belief, he merely provided the numbers from the previously valid Maryland Driver's License. When questioned, he voluntarily provided a copy of the license to the authorities. NYPD officer defendants had no evidence or proof that Plaintiff Cedillo had knowingly made, or attempted to make, any false entry into any business record prior to his arrest.
22. Upon information and belief, defendant officers asked Plaintiff where he received the Maryland license and the informed them it belonged to him. They then placed him in a room and proceeded

to question him for several hours. During his questioning, Plaintiff requested multiple times that defendant officers provide him with a translator or, in the alternative, a Spanish-speaking office, because he did not understand the questions posed to him. These requests were denied or ignored. As such, upon information and belief, defendant officers received no reliable information even suggesting that Plaintiff attempted or intended to falsify a business record.

23. Once defendants ROBERTS and/or JANE and/or JOHN DOE # 1-8 approached Plaintiff Cedillo he was not free to leave.
24. Subsequent to Plaintiff Cedillo's arrest, he was transferred to the 60th precinct. While there, defendants ROBERTS and/or JANE and/or JOHN DOE's # 1-8 searched Plaintiff Cedillo. No contraband was ever recovered from Plaintiff.
25. While Plaintiff was incarcerated at the precinct and Central Booking, defendants ROBERTS and JANE and/or JOHN DOE's # 1-8 falsely and maliciously told the Kings County District Attorney's Office that plaintiff had committed the crime of Falsification of a Business Record in the second degree, and an attempt to the same. At the time they conveyed this information, defendant officers had no information even suggesting that Plaintiff had intended to defraud anyone, or had made any false entries into any business enterprise's records.
26. During his confinement, Plaintiff Cedillo was subjected to depraved, filthy and inhumane conditions. He suffered physical pain because he was denied food, inflaming his medical condition of gastritis. Plaintiff was incarcerated for approximately 30 hours. He lost his job and was unable to work. The arrest and his incarceration caused him significant anguish and emotional harm.
27. Plaintiff accepted an Adjournment in Contemplation of Dismissal at his December 17, 2019 arraignment.

FIRST CAUSE OF ACTION**FALSE ARREST AND FALSE IMPRISONMENT**

28. Plaintiff repeats and alleges paragraphs 1 through 27 as if fully set forth herein.
29. The acts and conduct of the defendants, ROBERTS and/or JANE and JOHN DOE # 1-8 constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.
30. The individually named defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.
31. As a result of the foregoing, Plaintiff's liberties were restricted for approximately 30 hours, he was humiliated, searched, and subjected to handcuffing and other physical restraints, without probable cause.
32. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

SECOND CAUSE OF ACTION**NEGLIGENT HIRING, RETENTION, TRAINING AND SUPERVISION**

33. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 32 with the same force and effect as if more fully set forth at length herein.
34. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise the individually named defendants,

ROBERTS and/or JANE or JOHN DOE # 1-8, individuals who were unfit for the performance of NYPD duties.

35. The aforementioned acts of negligent hire, retention, training, and supervision by the City of New York and the New York City Police Department include, but are not limited to failing to take reasonable control/and or discipline officers who lie, fabricate evidence, engage in illegal acts toward other police officers or civilians, and/or commit perjury to cover up police misconduct and/or inflate arrest statistics.

FEDERAL CLAIMS

FIRST CLAIM FOR RELIEF

DEPRIVATION OF FEDERAL RIGHTS UNDER 42 U.S.C. § 1983

36. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
37. All of the aforementioned acts of defendants ROBERTS and/or NYPD OFFICERS JOHN and JANE DOE" #1-8, their agents, servants, and employees, were carried out under the color of state law.
38. All of the aforementioned acts deprived plaintiff of his rights, privileges, and immunities guaranteed to citizens of the United States by the Fourth and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.
39. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers with all the actual and/or apparent authority attendant thereto.
40. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and the rules of the City of New York, the New York City Police Department, all under the supervision of ranking officers of said department.

41. Defendants, collectively and individually, while acting under color of state law, engaged in conduct which constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

SECOND CLAIM FOR RELIEF

FALSE ARREST UNDER 42 U.S.C. § 1983

42. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
43. As a result of the aforesaid conduct by defendant ROBERTS and/or POLICE OFFICERS “JANE or JOHN DOE” #1-8, plaintiff was subjected to an illegal, improper, and false arrest by the defendants ROBERTS and POLICE OFFICERS “JOHN DOE” #1-8, taken into custody and caused to be falsely imprisoned, detained, and confined, without any probable cause, privilege or consent.
44. As a result of the foregoing, plaintiff’s liberties were restricted for an extended period of time, he was put in fear for her safety, and he was humiliated, searched, and subjected to handcuffing and other physical restraints, without probable cause.
45. As a result of the foregoing, plaintiff was deprived of his Constitutional rights and has suffered physical pain and mental anguish, together with shock, fright, apprehension, embarrassment and humiliation.

THIRD CLAIM FOR RELIEF

MUNICIPAL LIABILITY UNDER 42 U.S.C. § 1983

46. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
47. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

48. The aforementioned customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department include, but are not limited to, the following unconstitutional practices:
- A. arresting individuals regardless of probable cause in order to inflate the officer's arrest statistics; and,
 - B. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing; and,
 - C. fabricating evidence in connection with their arrest/prosecution in order to cover up police misconduct; and,
 - D. arresting individuals regardless of probable cause in order to deprive individuals of their right to freedom of speech under the First and Fourteenth Amendments and/or in retaliation for individuals exercising their First Amendment rights; and,
 - E. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing and regardless of probable cause, for the purpose of obtaining overtime compensation; and
 - F. failing to take reasonable steps to control and/or discipline police officers who lie, fabricate evidence, and/or commit perjury in order to cover up police misconduct and/or inflate arrest statistics.
49. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department constituted deliberate indifference to the safety, well-being and constitutional rights of the plaintiffs.

50. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by the plaintiffs as alleged herein.
51. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by the plaintiffs as alleged herein.
52. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating the plaintiffs' constitutional rights.
53. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers, and were directly responsible for the violation of the plaintiffs' constitutional rights.
54. The acts complained of deprived the plaintiff of his right:
- G. Not to be deprived of liberty without due process of law;
 - H. To be free from seizure and arrest not based upon probable cause;
 - I. Not to have summary punishment imposed upon them; and
 - J. To receive equal protection under the law.

WHEREFORE, RAUL CEDILLO plaintiff, demands a judgment against the defendants on each cause of action in amounts to be determined upon the trial of this actions which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorney's fees inclusive of costs and disbursements of this action, interest and such other relief as appropriate under the law.

Dated: New York, New York
July 7, 2021

Respectfully submitted:

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TO: CITY OF NEW YORK: CORPORATION COUNSEL, 100 Church Street, New York, NY 10007
NYPD OFFICER JESSICA M. ROBERTS (SHIELD # 2624), 60th Precinct, Kings County, New York

ATTORNEY'S VERIFICATION

I, **SYDNEY O'Hagan**, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am attorney at the law firm of **SYDNEY O'HAGAN, ESQ.**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters wherein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff's is that Plaintiff is out of the county.

DATED: New York, New York
July 7, 2021



Sydney O'Hagan, Esq.